

STATE OF NEW YORK

9669--A

IN ASSEMBLY

January 21, 2026

Introduced by M. of A. CASHMAN -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to authorizing a distinctive "Honor Flight" license plate; and to amend the state finance law, in relation to establishing the Honor Flight fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 404-ff to read as follows:

3 § 404-ff. Distinctive "Honor Flight" license plates. 1. Any person
4 residing in this state shall, upon request, be issued a distinctive
5 "Honor Flight" license plate. Application for such license plate shall
6 be filed with the commissioner in such form and detail as the commis-
7 sioner shall prescribe.

8 2. A distinctive plate issued pursuant to this section shall be issued
9 in the same manner as other number plates upon the payment of the regu-
10 lar registration fee prescribed by section four hundred one of this
11 article; provided, however, that an additional annual service charge of
12 twenty-five dollars shall be charged for such plate. Such annual service
13 charge shall be deposited pursuant to the provisions of section four
14 hundred four-00 of this article to the credit of the department of motor
15 vehicles distinctive plate development fund established by section nine-
16 ty-five-g of the state finance law, and shall be used for the
17 production, design, advertising and marketing of distinctive license
18 plates pursuant to such section ninety-five-g; provided, however, that
19 additional annual service charges collected in excess of six thousand
20 dollars shall be deposited to the credit of the Honor Flight fund estab-
21 lished pursuant to section ninety-seven-ss of the state finance law and
22 shall be used to support Honor Flight.

23 § 2. The state finance law is amended by adding a new section 97-ss to
24 read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD10694-03-6

1 § 97-ss. Honor Flight fund. 1. There is hereby established in the
2 joint custody of the commissioner of taxation and finance and the comp-
3 troller, a special fund to be known as the "Honor Flight fund".

4 2. Such fund shall consist of all revenues received pursuant to the
5 provisions of section four hundred four-ff of the vehicle and traffic
6 law and all other monies appropriated, credited, or transferred thereto
7 from any other fund or source pursuant to law. Nothing contained in this
8 section shall prevent the state from receiving grants, gifts or bequests
9 for the purposes of the fund as defined in this section and depositing
10 them into the fund according to law.

11 3. Monies of the fund shall be expended to support Honor Flight.

12 4. Monies shall be payable from the fund on the audit and warrant of
13 the comptroller on vouchers approved and certified by the state director
14 of veterans' services.

15 § 3. 1. A distinctive plate established pursuant to section 404-ff of
16 the vehicle and traffic law shall only be designed, produced and issued
17 upon the delivery to the department of motor vehicles of a surety bond
18 in the amount of six thousand dollars, which shall be executed by a
19 surety company authorized by the department of financial services to
20 transact business in this state. Provided, however, that if the commis-
21 sioner of motor vehicles shall have received prior to plate design,
22 production and issuance at least two hundred orders for such distinctive
23 plate together with the additional annual service charge applicable to
24 each such order, which shall be non-refundable, no such surety bond
25 shall be required. All service charges collected pursuant to this
26 section shall be deposited pursuant to the provisions of section 404-oo
27 of the vehicle and traffic law to the credit of the department of motor
28 vehicles distinctive plate development fund established by section 95-g
29 of the state finance law and shall be used for the design, production,
30 advertising and distribution of distinctive license plates in accordance
31 with such section 95-g.

32 2. If, upon the expiration of two years following the date upon which
33 distinctive plates in the series are first available for sale two
34 hundred or more sets of such plates are sold, a bond delivered pursuant
35 to this section shall be discontinued. If fewer than two hundred sets of
36 such plates are sold by such time, the department of motor vehicles
37 shall be entitled to recover against the bond in an amount proportionate
38 to such shortfall.

39 § 4. This act shall take effect immediately; provided, however, that
40 sections one and two of this act shall take effect on the one hundred
41 eightieth day after it shall have become a law. Effective immediately,
42 the addition, amendment and/or repeal of any rule or regulation neces-
43 sary for the implementation of this act on its effective date are
44 authorized to be made and completed on or before such effective date.